Union Bank Of India vs Ramit Vohra on 6 March, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CONT.CAS(C) 392/2024 & CM APPL. 14145-14
UNION BANK OF INDIA
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RAMIT VOHRA
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CORAM:
HON'BLE MS. JUSTICE MINI PUSHKARNA
OR

% 06.03.2024 CM APPL. 14145/2024 (For Exemption)

1. Exemption allowed, subject to just exceptions.

2. Application is disposed of.

3. The present application has been filed seeking liberty to file Compact Disc ("CD") showing the video of the respondent.

4. Court grants liberty to the petitioner to show the video, if required at appropriate stage.

5. With the aforesaid observation, the present application is disposed of. CONT.CAS(C) 392/2024

6. The present petition has been filed alleging willful disobedience of the affidavit, orders dated 09th February, 2023 and 20th April, 2023 passed by This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/03/2024 at 22:15:16 Coordinate Bench of this Court in CONT. CAS(C) No. 89/2018.

7. Learned Senior Counsel appearing for the petitioner submits that the respondent has been harassing the officials of the petitioner-Bank since the year 2012 and despite his various undertakings to this Court, the respondent in utter violation of the said undertakings, continues to breach the same with impunity.

8. It is submitted that the petitioner was constrained to file a suit for permanent injunction bearing CS (OS) No. 708/2012 against the respondent, wherein vide order dated 21st March, 2012, the

respondent herein was restrained from interfering in the smooth functioning of the petitioner-Bank.

9. Respondent was further restrained from creating any nuisance in the bank, squatting at the gate and causing any hindrance in the ingress or egress of the bank officials and customers of the Pahar Ganj Branch, as well as General Manager's office at Gole Market, New Delhi.

10. Learned Senior Counsel appearing for the petitioner has drawn the attention of this Court to the order dated 16th April, 2012 passed in CS (OS) No. 708/2012, which reads as under:

> "xxx xxx xxx Defendant no. 1 is present in the Court and states that he will not create any nuisance in the bank by squatting or shouting slogans nor will he interfere in the ingress and egress of the bank officials as well as customers to the Pahar Ganj Branch as well as General Managers office at Gole Market, New Delhi. He will visit the bank only with regard to the operation of his bank account in normal course. His statement on oath in this regard has been recorded. Defendant no. 1 shall remain bound by his undertaking. In view of the statement of defendant no. 1, plaintiff seeks leave to withdraw the suit. Disposed of as withdrawn.
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> Interim application is also disposed of as infructuous.
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> xxx xxx xxx"

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11. It is submitted that despite the aforesaid directions, the petitioner continued harassing the officials of the bank. Thus, by order dated 15th December, 2020 passed in CS (OS) No. 424/2020, this Court recorded as under:

> "xxx xxx xxx
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> 5. The plaintiff bank appears to be aggrieved by the purported defamatory and derogatory posts uploaded by defendant no. 1 on Facebook and WhatsApp.
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> 6. Mr. Sanjeev Sindhwani, learned senior counsel, who appears along with Mr. Sanjeev Bhandari, on advance notice, for defendant no. 1, says that since defendant no. 1 has been advised to take recourse to an appropriate legal remedy, the posts, which are the subject matter of the CD, filed by the plaintiff bank, will be taken down and in future, no defamatory posts will be uploaded.
>
> xxx xxx xxx"

12. Attention of this Court has also been drawn to the order dated 09th February, 2023 passed in CONT. CAS(C) No. 89/2018, wherein, the following directions were issued:

> "xxx xxx xxx
>
> 4. He states that the balance, if any, lying in these accounts will be remitted through a bank draft drawn in the name of the Respondent. The Bank draft shall be given to the counsel for the Respondent. The said statement is taken on record.
>
> 5. He further, states on instructions that the bank and its officers will not extend any request to the Respondent to visit the branches and offices of the Petitioner's Bank and therefore, the Respondent can have no reason to visit the Branch and offices of the Bank.
>
> xxx xxx xxx"

13. Subsequently, when the aforesaid matter was listed on 20th April, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/03/2024 at 22:15:16 2023, the Coordinate Bench of this Court passed the order, which reads as under:

> "xxx xxx xxx
>
> 5. He states that however, upon implementation of the said order the Respondent has issued WhatsApp messages to the officials of Petitioner Bank, which are mala fide, scandalous and lowers the majesty of the Court. In this regard he has drawn this Court's attention to the extract of WhatsApp messages dated 02.04.2023 and 11.04.2023, which are reproduced in this application and read as under:
>
> Extract of WhatsApp message dated 02.04.2023 "Our complaints against the organised enjoyment Union Bank of India management headed by Madam A. Manimekhalai trying to cover their financial fraud through legal means with DGM Law Salish Pattnayak engaging Senior Lawyer Sanjeev Kakra, Aditya Madan, Gautam Gupta who by giving false submissions in court have deliberately closed our saving account, current account, overdraft account, cash credit account on 13/2/2023 crippling our running business since last 30 years. Our old complaints were looked by Superintendent of Police CBI, AC-V New Delhi.... "
>
> " ..... As we are exposing their fraud the present management headed by MADAM A. MANIMEKHALAI & executive director MR S RAMASUBRAMANIAN has directed their DGM LAW MR SATISH PATTNAYAK to fix us legally, DGM Law Mr. Satish Pattnayak has engaged Senior Lawyer Mr. Sanjeev Kakra, Gautam Gupta, Aditya

> Madan who have been trying to fix us legally by filing wrong/false contempt cases, social media cases and trying to get dates in our other cases just to protect the bank management wasting public money. On 13/2/2023 their senior lawyer on the instructions of DGM LAW SATISH PAITNAYAK gave false submissions in court and all our running accounts were closed - SAVING ACCOUNT, CURRENT ACCOUNT, OVERDRAFT ACCOUNT, and CASH CREDIT ACCOUNT deliberately showing as court order which in fact were not court directions. Their lawyer knows that we have an audit agreement with the bank as This is a digitally signed order.
>
> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/03/2024 at 22:15:16 per government of India instructions; the bank has no right to close our accounts, file any contempt cases /social media cases or deny us entry in the bank."

Extract of WhatsApp message dated 11.04.2023 "We have requested the CBI authorities to register cases against the law officers/bank lawyers involved in our case who have been harassing, troubling and intimidating us through legal wasting public money knowing very well that we have a Forensic Audit agreement with the bank"

> 6. He states the Petitioner Bank has taken recourse to legal process for recovery of its dues from the Respondent. He states that the Petitioner Bank also approached this Court to seek a restraint against the Respondent from defaming the Petitioner Bank and its officials. He states that the Respondent was duly represented in these proceedings and undertook to the Court that he will not publish or circulate any further defamatory material.
>
> 7. He states that the Respondent herein, who as well has initiated several legal proceedings against the Petitioner Bank and its officers and therefore has recourse to an appropriate forum for redressal and adjudication of his allegations. He states that however, in flagrant disregard of the restraint orders dated 16.04.2012 and 15.12.2020 and the statement made before this Court, the Respondent continues to indulge in the objectional and defamatory acts and omission enlisted in this application, which includes stalking the lady Managing Director ('MD') of the Petitioner Bank during the course of discharge of her duties. He states that the MD and other officers of the Bank are being harassed and feeling intimidated, as unfair and untrue allegations are being made by the Respondent through these malicious messages circulating in the public and private domain.
>
> xxx xxx xxx"

14. Attention of this Court has also been drawn to the fact that the respondent tendered an unconditional apology and retracted the WhatsApp messages that had been written, raising various allegations against the counsel appearing for the petitioner-Bank. Thus, in the order dated 20th This

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> "xxx xxx xxx
>
> 11. He submits at the outset that the contents of the WhatsApp messages referred to in this application are unsustainable and he has already advised the Respondent to tender an unconditional apology to the Court and retract the said WhatsApp messages. He states that the Respondent has agreed to tender his unconditional apology.
>
> 12. He states that, in fact, he as an officer of this Court feels strongly against the contents of the WhatsApp messages and the subsequent conduct of the Respondent as pleaded in the application. He states that in the event the Respondent fails to file and tender an unconditional apology, he as well will withdraw from the cases and stop representing the Respondent.
>
> 13. He states that he has legally advised the Respondent that since the matter between the Bank and the Respondent with respect to the financial transactions is sub judice before the Courts/Tribunals; therefore, any concerns he might have should be agitated and fought for in those legal proceedings and not by circulating messages on social media platforms, public domain and private domain.
>
> 14. He states that he has the highest regard for the senior counsel appearing for the Petitioner Bank and concedes that the allegations made against the senior counsel and other counsel are unjustified and uncalled for.
>
> 15. He states that he personally condemns the actions of the Respondent and is confident that the Respondent will file an unconditional apology.
>
> xxx xxx xxx
>
> 18. He further states and undertakes on instructions that in terms of Prayer ('a') in CM APPL. 19536/2023, the Respondent will not circulate any message or letter against the Petitioner Bank and/or its officials and its advocates, with respect to the matter which is sub judice before the Courts and Tribunals, in any public or private domain and/or to any individual or Government official or to the Petitioner bank and/or its official, unless such a written complaint/communication has been duly approved and counter signed by Mr. Sanjeev Bhandari, the counsel for the Respondent.

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19. Learned senior counsel for the Petitioner states that the lady MD of the Petitioner Bank is feeling intimidated and harassed by the Respondent. He states that the officials of the bank have no professional or personal concern with the Respondent herein and are being approached by the Respondent, without seeking any prior appointment and being subjected to unwarranted allegations. He states that in view of the nature of the false and defamatory messages being issued by the Respondent, the officials of Petitioner Bank are feeling threatened and it is affecting their work.

19.1. In this view of the matter, the Respondent is directed not to contact or approach the MD of the Petitioner Bank or the officials of the Petitioner Bank for any reason whatsoever. The Respondent is restrained from meeting any officials of the Petitioner Bank, without a prior approved written appointment issued by the Petitioner Bank inviting the Respondent.

19.2. It is clarified that this restraint and direction however shall not apply to Respondent's lawyer, Mr. Sanjeev Bhandari, or a lawyer nominated by Mr. Sanjeev Bhandari from meeting the officers of the Petitioner Bank to represent the cause/case of the Respondent, if necessary.

19.3. Learned counsel for the Respondent states that the said directions are reasonable and the Respondent will abide by the same. The assurance is taken on record.

20. The order dated 09.02.2023 was passed after due deliberation and after hearing the arguments of the parties. The Respondent had not objected to the passing of the order dated 09.02.2023 and the said order was passed to eliminate further reasons for violating the undertaking given to the Court. However, unfortunately, the intended purpose has not been achieved and the Respondent has acted in an aggravated manner showing absolute disregard for the present proceedings.

xxx xxx xxx"

15. Pursuant to the directions by this Court, an affidavit was filed on behalf of the respondent herein, relevant portion of which is extracted as below:

"xxx xxx xxx This is a digitally signed order.

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>
> 4. That the deponent further tenders unconditional apology to Senior Advocate Shri Sanjeev Kakra, Advocate Adilya Madan, Advocate Gautam Gupta about the remarks as mentioned in the, said message(s) referred in the present application.
>
> xxx xxx xxx"

16. Leaned Senior Counsel for the petitioner submits that despite the aforesaid unconditional apology and undertaking before this Court not to continue his conduct of raising allegations against the officials of the bank and the lawyers representing the bank, the respondent has again written an E-mail dated 23rd February, 2024 and 26th February, 2024.

17. The Email dated 23rd February, 2024, reads as under:

> "xxx xxx xxx Subject: Fwd: NEXUS OF BEENA WAHID CHEIF GENERAL MANAGER, SATISH PATTNAYAL CHIEF LAW OFFICER AND LAWYERS OF BOTH SIDE ENGAGED IN CRIMINAL CONSPIRACY TO DESTROY OUR BUSINESS AND MISUSE PUBLIC MONEY
>
> ---------- Forwarded message ----------
>
> From: ramit impact ramitimpact@gmail.com Date: Fri, Feb 23, 2024 at 8:34AM Subject: NEXUS OF BEENA WAHID CHEIF GENERAL MANAGER, SATISH PATTNAYAL CHIEF LAW OFFICER AND LAWYERS OF BOTH SIDE ENGAGED IN CRIMINAL CONSPIRACY TO DESTROY OUR BUSINESS AND MISUSE PUBLIC MONEY To: R.P. Bansal <bansal.rp@gmail.com> RESPECTED MR PK MISHRA 23/2/2024 PRINCIPAL SECRETARY TO HONOURABLE PRIME MINISTER SOUTH BLOCK This is a digitally signed order.
>
> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/03/2024 at 22:15:17 NEW DELHI SUB YOUR SUPPORT TO CHIEF GENERALMANAGER MADAM BEEN.A WAHID UNION BANK OF INDIA WHO KILLED OUR BUSINESS, MADE US AND MORE THAN 100 PERSONS ATTACHED TO OUR BUSINESS UNEMPLOYED ESCAPING PUNISHMENT.
>
> SIR, Due to your support to MADAM BEENA WAHID CHIEF GENERAL MANAGER UNION BANK OF INDIA who is the main culprit in destroying our business and closing all our running business accounts attached to GST/INCOME TAX on 13/2/2023 MISUSING all banking laws is getting escaped from punishment from the managing director madam A. MANIMEKHALI.

She has wasted public money more than RS 40 LACS to engage best lawyers to kill our business and closing our running business accounts and entangling us in 1egal so that she could get promotions from GENERAL MANAGER to CHIEF GENERAL MANAGER and get posting in Delhi.

Sir on her instructions the CHIEF LAW OFFICER SATISH PATTNAYAK and his law officers have engaged the SENIOR LAWYERS who created grounds for entangling us in legal and forcefully closing all our running business accounts SAVING/CURRENT/CASH CREDIT accounts.

These SENIOR LAWYERS on the banks panel misguided the HONOURABLE JUSTICE of HONOURABLE DELHI HIGH COURT and got such orders to close our accounts showing as if legal orders. My lawyer, who is a close friend of a senior lawyer, is also part and parcel of their, misdeeds to destroy our business.

Madam BEENA WAHID CHIEF GENERAL MANAGER has misused public money and has given more than RS 40 LACS of bank money as legal fees to her lawyers to fix us legally (Details to be confirmed from the bank finance manager).

In their endeavor to fix us legally these bank lawyers have used an order of 2012 to file contempt of court cases against us in 2023 knowing well that bank has recovered all its inflated dues in 2014, on the instructions of MADAM BEENA WAHID Just to escape from the This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 11/03/2024 at 22:15:17 pressure of MANAGING DIRECTOR A.MANIMEKHALI & BANKING SECRETARY/JOINT SECRETARY who directed her to resolve our grievances.

These lawyers got huge money to get close the cases in HONOURABLE MIGM COURT/DRAT/ORT where the total financial fraud of paharganj branch manager is exposed. These lawyers were engaged to cover the fraud of CORE BANKING SOLUTION SYSTEM (FINANCLE) and creation of three bank statements of accounts of 357105040111050 showing different balances of the same date. These lawyers have tried to save the paharganj branch manager who misappropriated our RS 89 LACS balance from an illegal sale amount.

These lawyers were paid to cover the partial refund of RS 38 LACS plus RS.25 LACS and not to get legal orders for conducting FORENSIC AUDIT in our account 357105040111050.

Sir only because of your pressure MANAGING DIRECTOR Madam A. MANIMEKHALI or DR VIVEK JOSHI is not able to take action. Madam BEENA

WAHID through her senior lawyer used letters written to your good self by us in HONOURABLE DELHI HIGH COURT to get us fixed legally.

She through her lawyers tried to create a sensation by filing false STALKING cases against us when we tried to meet the managing director in DFS on the instructions of the banking secretary.

Sir we request you to stop giving support to madam BEENA WAHID C.G.M. and let CHIEF VIGILANCE OFFICER Get investigations done against her and CHIEF LAW OFFICER Satish Pattnayak as to how they have misused the banking laws and public money to hire lawyers to kill us and more than 100 persons attached to our business unemployed.

Because of their lawyers we were intimidated legally and were forced to beg money to eat our two meals. We are forced to stand outside DFS daily to get justice.

Such bank officers MADAMBEENA WAHID and SATISH PATTNAYAL chief law officer should be punished and all public money wasted by them should be recovered from their salaries, the legal fees paid to their senior lawyers to kill us should also be recovered.

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xxx xxx xxx"

18. Likewise, the E-mail dated 26th February, 2024, reads as under:

"xxx xxx xxx Date: Mon, Feb 26, 2024 at 8:06AM Subject: complain to DRT-1 PRESIDING OFFICER AGAINST UNION BANK AND BOTH LAWYERS IN OUR CASE IMPACT ENTERPRISES VS UNION BANK OF INDIA APPEAL 19/2019 To: R.P. Bansal <bansal.rpgmail.com> RESPECTED MR SHARMA 26/2/2024 PRESIDING OFFICER DEBT RECOVERY TRIBUNAL -1 NEW DELHI SUB PROFESSIONAL MISCONDUCT OF BOTH LAWYERS (CLOSE FRIENDS) IN CASE APPEAL /19/2019 IMPACT ENTERPRISES VS UNION BANK OF INDIA SANJEEV BHANDERI /SANJEEV KAKRA TO BAIL OUT THE CULPRIT UNION BANK OF INDIA OFFICERS MADAM BEENA WAHID CHIEF GENERAL MANAGER & SATISH PATTNAYAK CHIEF LAW OFFICER INVOLVED IN FINANCIAL FRAUD IN OUR ACCOUNT 357105040111050 (IMPACT ENTERPRISES) PAHARGANJ BRANCH NEW DELHI Sir, With folded hands we apologize that on 26/2/2024 we are forced to write letters to you regarding the professional misconduct of my lawyer

MR SANJEEV BHANDERI and his close friend MR SANJEEV KAKAR, GAUTAM GUPTA who have entered into a criminal conspiracy misusing all laws to bail out the union bank of India officers madam BEENA WAHID CHIEF GENERAL MANAGER, CHIEF LAW OFFICER SATISH PATTNAYAK and PAHARGANJ BRANCH MANAGER.

Sir we have made complaints to PMO/RBI/FM /DFS and BANKING SECRETARY DR VIVEK JOSHI against these officers who tempered with the CORE BANKING SOLUTION SYSTEM (FINANCE) and This is a digitally signed order.

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HONOURABLE FINANCE MINISTER & FINANCE SECRETARY directed union bank to conduct a FORENSIC AUDIT in our account as per audit agreement 31/12/2019 to determine the true facts of wrong classification of NPA and excess charging of interest and other wrong doings of tempering of banks books of accounts.

Bank REGIONAL MANAGER changed the terms of reference and camouflaged the forensic audit as project mudra report to save his culprit officers. He partially refunded us RS 38 LACS & RS. 25 LACS. All these details are on record in our appeal 19/2019.

Till date the bank is not providing the details of this refund and clarifying where this money was parked for the last 8 years. Why did the bank not inform the ORT about this money when initially it filed cases against us.

Sir in the project mudra report filled in DRT bank writes that on 30/3/2011 our balance is RS. 3,96,33,867.89 but the statement of accounts filled in your court printed on 21/10/2016, 357105040111050 the balance shown is RS 3,74,45,598.89.

In statement of accounts printed on 30/7/2019 the opening balance is shown as RS. 3,96,67,067.89 (without date) and in the statement of account 357105040111050 printed on 4/3/2022 (which we received through DRT) the opening balance is RS 3,74,47,198.89 (without date).

Sir clear financial fraud of RS. 21,86,668.11 is shown. This clearly shows tempering of bank books of account by the paharganj branch manager.

In one statement of accounts printed on 21/10/2016 the entry of 28/3/2014 sale entry of RS. 7.22 crores is shown but in other two statements of accounts this 28/3/2014 entry is not shown to cover the fraud.

To cover the fraud deliberately these entries are shown in E- AUCTION A/C statement made on EXCEL.

In the statement of accounts printed on 21/10/2016 the entries of 2011, 12, 13 are shown after 2014. This again shows tempering of the core banking solution system by the paharganj branch manager.

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Sir on 15/2/2012 bank restores back our limits and allows us debits/credits of more than RS. 1.22 CRORES and collect its interest till 2012.

If the bank has collected its interest till 2012 then how can it declare us NPA on 31/3/2011.

This is a clear violation of I.A.AC. norms of RBI.

In BANKING OMBUDSMAN order bank has given an affidavit that on 31/3/2011 our account is STANDARD and bank is refunding us RS 9.44 LACS excessive interest which later on was increased to RS 17.28 LACS which till date has not been refunded to us.

SIR bank gave us a letter through DRT dated 28/3/2014 where the bank is refunding us RS. 89,17,590/- LACS the balance money from the sale amount. But this money has been misappropriated by the bank manager. Bank lawyer ADITYA MADAN represented PHONIX got an order dated 9/10/2013 which is notice to defended (impact enterprises) but the bank manager on this order in 2014 after sale of property after 3 months (may2014) misappropriated our money. This money was to be refunded to us on 28/3/2014 but it was illegally retained by the bank.

Sir to save from the financial fraud the culprit UNION BANK OF INDIA officer madam BEENA WAHID CHIEF GENERAL MANAGER and CHIEF LAW OFFICER SATISH PATTNAYAK entered into a criminal conspiracy with bank lawyers and my lawyer SANJEEC KAKAR, SANJEV BHANDERI , GAUTAM GUPTA, ADITYA MADAN to bail the culprit officers legally.

Sir these lawyers were paid huge fees and other benefits by CGM BEENA WAHID AND C.L.O. SATISH PATTNAYAK misusing public funds. To every complaint on P.G.PORTAL bank was escaping from answering and was referring to "MATTER IS SUBJUDICE".

In DRT/HONOURABLE DELHI HIGH COURT these combined lawyers of both parties were creating ways and means to cover the financial fraud of the bank which is clearly evident from the judgments. These lawyers never wanted a judicial order for conducting FORENSIC AUDIT in our account 357105040111050 to This is a digitally signed order.

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HONOURABLE DELHI HIGH COURT has issued contempt of court notices to paharganj branch manager/regional manager for not filing the forensic audit report. It has rejected their fact finding project mudra report.

Whenever we tried to put pressure from the banking secretary, managing director UBI or executive director UBI or chief vigilance officer UBI these culprit bank officers were showing these judgments to bail the paharganj branch manager and avoiding reconciliation of accounts.

Since last august 2023 both the lawyers are taking dates in DRT and trying to entangle us in contempt of court cases. All the contempt of court cases filed against us in DELHI HIGH COURT are the idea of both lawyers to generate fees knowing very well that the bank has sold our property in 2014, so the contempt of court against 2012 order cannot exist in 2023. These lawyers deliberately got our SAVINGS/CURRENT/CASH CREDIT accounts closed in paharganj branch on 13/2/2023 showing it as legal orders. They deliberately filed STALKING cases against us when we tried to meet the managing director in DFS on the banking secretary's instructions.

But all this was done on the instructions of CHIEF GENERAL MANAGER BEENA WAHID who wanted promotions and escape from the managing director pressure to resolve our grievances. The CHIEF LAW OFFICER SATISH PATTNAYAK wanted to save the bank officers from the tempering of bank books of accounts.

Sir we are forced to beg money to eat our two meals as our total business has been forcibly closed by the bank officers and these lawyers.

Sir at this stage of our case we cannot change our lawyers and are forced to step in directly to bring the true picture in front of you. We will love to see the arguments of both lawyers (good friends defending the bank officers) on 29/2/2024 when our case is listed and are informing you so that you can yourself see their misdeeds.

We will be shortly making complaints of these lawyers to HONOURABLE CHIEF JUSTICE OF SUPREME COURT as to how they have tried to bail the culprit bank officers and killed our business and family to earn money.

This is a digitally signed order.

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Sir please excuse us if we have misused any legal laws as under these circumstances we have no other alternative nor money/means /time to hire any new lawyer at the last stage of the case.

We have sent this letter to the Union bank of India and our lawyer on record.

Regards Ramit Vohra xxx xxx xxx"

19. Thus, it is submitted that the respondent is continuing with his contemptuous act.

20. Per contra, respondent appears in person and submits that he has not committed any contempt of Court. He submits that a huge amount of money of the respondent is lying with the bank, which the bank has still not released. Therefore, he submits that he has only been writing to the Administrator of the Banking Secretary to raise his complaints. He further submitted that he has not visited the bank after the orders passed by this Court.

21. He further submits that he only wants that his accounts be settled by the bank, so that the huge amount of money, which remains unpaid, is released by the bank.

22. After hearing the parties, it prima facie appears that the respondent has violated the various orders of this Court. The respondent has written E- mails dated 23rd February, 2024 and 26th February, 2024, which are in clear violation of the undertaking given by the petitioner before this Court and the This is a digitally signed order.

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23. Accordingly, issue notice to the respondent.

24. Let reply be filed within a period of four weeks.

25. Rejoinder thereto, if any, be filed within two weeks thereafter.

26. In the meanwhile, the respondent is restrained from harassing, squatting, approaching and following the CGM Delhi, CGM Mumbai, Managing Director, Regional Head, DGM (Law), Mumbai or any official/management/senior management of the petitioner-Bank in their course of their official assignments/meetings/conferences/functioning or in any other manner whatsoever.

27. Re-notify on 23rd July, 2024.

MINI PUSHKARNA, J MARCH 6, 2024/kr This is a digitally signed order.

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